

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
KENNETH DALY,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT and JOHN and JANE DOE 1
Through 10, individually and in their official capacities (the
names John and Jane Doe being fictitious, as the true names are
presently unknown),

Defendants.
-----X

PLAINTIFF DEMANDS
TRIAL BY JURY

**VERIFIED
COMPLAINT**

Index No.:
Assigned Judge:
HON.

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §§1983 and 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the State of New York and the United States. Plaintiff also asserts supplemental state law claims.

JURISDICTION

2. The action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is found upon 28 U.S.C. §§1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under 28 U.S.C. § 1391(b), in that it is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in the matter pursuant to Fed. R. Civ. P. 38 (b).

PARTIES

6. Plaintiff KENNETH DALY is a male, a citizen of the United States, and at all relevant times a resident of the City and State of New York. He resides in Richmond County.

7. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant CITY OF NEW YORK maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, City of New York.

9. That at all times hereinafter mentioned, the individually named defendants, JOHN and JANE DOE 1 Through 10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. That at all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their

employment by defendant CITY OF NEW YORK.

12. Each and all of the acts of the defendant alleged herein were done by said defendants while acting in furtherance of their employment by defendant CITY OF NEW YORK.

13. That on JULY 16, 2014 AT ABOUT 7:00 PM AT BAY STREET NEAR CENTRAL AVENUE, STATEN ISLAND, NY, KENNETH DALY WHEN OFFICERS OF THE NYPD VIOLENTLY AND USING EXCESSIVE FORCE, FALSELY ARRESTED, UNLAWFULLY DETAINED, UNLAWFULLY SEARCHED, ASSAULTED AND BATTERED KENNETH DALY AT THAT LOCATION. KENNETH DALY WAS THEN PLACED INTO HANDCUFFS. AFTER HE WAS HANDHANDCUFFED HE WAS IMPROPERLY ASSAULTED BY THE POLICE OFFICERS AFTER HE AGREED TO BE ARRESTED AND DID NOT RESIT.

14. KENNETH DALY WAS STRUCK MANY TIMES IN THE VARIOUS PARTS OF HIS BODY INCLUDING HIS HEAD AND LIMBS. KENNETH DALY WAS PHYSICALLY GRABBED AND ASSAULTED AFTER HE WAS HANDHANDCUFFED. HE WAS NOT RESITING WHEN HE WAS ASSULTED. PLAINTIFF SUFFERED VARIOUS INJURIES TO HIS BODY INCLUDING HIS HEAD AND LIMBS.

15. KENNETH DALY WAS STRUCK MANY TIMES IN THE VARIOUS PARTS OF HIS BODY INCLUDING HIS HEAD AND LIMBS. KENNETH DALY WAS PHYSICALLY GRABBED AND ASSAULTED AFTER HE WAS HANDCUFFED. HE WAS ASSULTED AFTER HE WAS HANDCUFFED. HE WAS NOT RESITING WHEN HE WAS ASSULTED. PLAINTIFF SUFFERED VARIOUS INJURIES TO HIS BODY INCLUDING SERIOUS PHYSICAL INJURIES TO HIS HEAD AND VARIOUS LIMBS.

16. All of the above occurred while other NYPD officers witnessed and failed to intervene in the illegal conduct described herein.

17. As a result of the foregoing, plaintiff KENNETH DALY

sustained, *inter alia*, physical injuries, emotional distresses, embarrassment, and humiliation, and deprivation of his liberty and constitutional rights.

Federal Claims

AS AND FOR A FIRST CAUSE OF ACTION

(Deprivation of Rights under 42 U.S.C. § 1983)

18. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs "1" through "17" with the same force and effect as if fully set forth herein.

19. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of state law.

20. All of the aforementioned acts deprived plaintiff KENNETH DALY of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United of America, and in violation of 42 U.S.C. § 1983.

21. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

22. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

23. Defendants, collectively and individually, while acting

under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

AS AND FOR A SECOND CAUSE OF ACTION
(Excessive Force under 42 U.S.C. § 1983)

24. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs numbered "1" through "23" with the same force and effect as if fully set forth herein.

25. The level of force employed by defendants was excessive, objectively unreasonable, and otherwise in violation of plaintiff KENNETH DALY's constitutional rights.

26. As a result of the aforementioned conduct of defendants, plaintiff KENNETH DALY was subjected to excessive force and sustained physical injuries.

AS AND FOR A THIRD CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983)

27. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs numbered "1" through "26" with the same force and effect as if fully set forth herein.

28. Defendants had an affirmative duty to intervene on behalf of plaintiff KENNETH DALY, whose constitutional rights were being violated in their presence by other officers.

29. The defendants failed to intervene to prevent the unlawful conduct described herein.

30. As a result of the foregoing, plaintiff KENNETH DALY was beaten and sustained physical injuries.

AS AND FOR A FOURTH CAUSE OF ACTION
(Supervisory Liability 42 U.S.C. § 1983)

31. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs numbered "1" through "30" with the same force and effect as if fully set forth herein.

32. The supervisory defendants personally caused plaintiff's constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise and train their subordinate employees.

AS AND FOR AN FIFTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983)

33. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs numbered "1" through "32" with the same force and effect as if fully set forth herein.

34. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

35. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York Police Department included, but were not limited to, a policy, custom or practice of inadequate screening, hiring, retaining, training and supervising its employees that was the moving force behind the violation of plaintiff KENNETH DALY'S rights as described herein. As a result of the failure of the City of New York to properly recruit, screen, train, discipline,

and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

36. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff KENNETH DALY.

37. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff KENNETH DALY as alleged herein.

38. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff KENNETH DALY as alleged herein.

39. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff KENNETH DALY was unlawfully beaten and subjected to physical abuse.

40. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff KENNETH DALY'S constitutional rights.

41. All of the foregoing acts by defendants deprived plaintiff KENNETH DALY of federally protected rights, including, but not limited

to, the right to be free from the use of excessive force and/or the failure to intervene.

42. As a result of the foregoing, plaintiff KENNETH DALY is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury.

Supplemental State Law Claims

43. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs numbered "1" through "42" with the same force and effect as if fully set forth herein.

44. That heretofore and within ninety (90) days after the claim herein sued upon arose, the plaintiff (then claimant) caused a Notice of Claim, in writing, sworn to by or on behalf of the plaintiff (then claimant) to be presented to the Comptroller of the City of New York for adjustment, which said Notice of Claim set forth the name and post office address of the plaintiff (then claimant) herein, and his attorneys, the nature of the claim, the time when, the place where and the manner in which the claim herein sued upon arose and the items of damages or injuries claimed to have been sustained, so far as then practicable.

45. That more than thirty (30) days have elapsed since the presentment of the Notice of Claim as aforesaid to defendant, CITY and payment thereof has been neglected and/or refused by the defendant, CITY.

46. That a hearing of this claim has not been held by the defendant pursuant to N. Y. GMU Law §50(h).

47. That this action was commenced within one (1) year and ninety (90) ninety days after the happening of the event upon which the claim herein sued upon is based.

48. That at all times mentioned the NEW YORK CITY POLICE DEPARTMENT, is and was an agency of the CITY OF NEW YORK.

49. Plaintiff has complied with all conditions precedent to maintaining the instant action.

50. Their action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

AS AND FOR A SIXTH CAUSE OF ACTION
(Assault under the laws of the State of New York)

51. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs numbered "1" through "50" with the same force and effect as if fully set forth herein.

52. As a result of the foregoing, plaintiff KENNETH DALY was placed in apprehension of imminent harmful and offensive bodily contact.

53. As a result of defendant's conduct, plaintiff KENNETH DALY has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

AS AND FOR AN SEVENTH CAUSE OF ACTION
(Battery under the laws of the State of New York)

54. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs numbered "1" through "53" with the same force and effect as if fully set forth herein.

55. Defendants made offensive contact with plaintiff without privilege or consent.

56. As a result of defendant's conduct, plaintiff KENNETH DALY has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

AS AND FOR AN EIGHTH CAUSE OF ACTION

(Intentional Infliction of Emotional Distress under the laws of the State of New York)

57. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs numbered "1" through "56" with the same force and effect as if fully set forth herein.

58. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

59. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

60. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant CITY OF NEW YORK.

61. The aforementioned conduct was intentional and for the sole purpose of causing severe emotional distress to plaintiff KENNETH DALY.

62. As a result of the aforementioned conduct, plaintiff KENNETH DALY suffered physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

AS AND FOR A NINTH CAUSE OF ACTION

(Negligent Screening, Hiring, and Retention under the laws of the State of New York)

63. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraph numbered "1" through "62" with the same force and effect as if fully set forth herein.

64. Upon information and belief, defendant City of New York failed to use reasonable care in the screening, hiring and retention of the aforesaid defendants who conducted and participated in the arrest of plaintiff KENNETH DALY.

65. Defendant City of New York knew, or should have known, in the exercise of reasonable care, the propensities of the individual defendants to engage in the wrongful conduct heretofore alleged in the Complaint.

AS AND FOR A TENTH CAUSE OF ACTION

(Negligent Training and Supervision under the laws of the State of New York)

66. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs numbered "1" through "65" with the same force and effect as if fully set forth herein.

67. Upon information and belief the defendant City of New York failed to use reasonable care in the training and supervision of the aforesaid defendants who conducted and participated in the arrest of plaintiff KENNETH DALY.

AS AND FOR A ELEVENTH CAUSE OF ACTION

(Negligence under the laws of the State of New York)

68. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs numbered "1" through "67" with the same force and effect as if fully set forth herein.

69. Plaintiff's injuries herein were caused by the carelessness, recklessness and negligence of the defendant City of New York and its employees and agents, who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

AS AND FOR A TWELFTH CAUSE OF ACTION
(Respondeat Superior liability under the laws of the State of New York)

70. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs numbered "1" through "69" with the same force and effect as if fully set forth herein.

71. Defendant City of New York is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

72. As a result of the foregoing, plaintiff KENNETH DALY is entitled to compensatory damages in amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of their action.

WHEREFORE, plaintiff KENNETH DALY demands judgment and prays for the following relief, jointly and severally, against the defendants:

(A) full and fair compensatory damages in an amount to be determined by a jury:

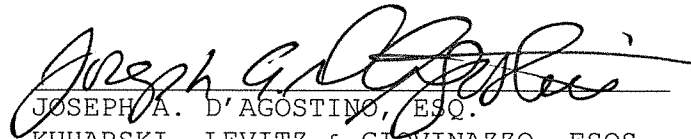
(B) punitive damages in an amount to be determined by a jury:

(C) reasonable attorney's fees and the costs and disbursements of their action; and

(D) such other and further relief as appears just and proper.

Dated: New York, New York
October 7, 2015

KUHARSKI, LEVITZ & GIOVINAZZO, ESQS.


JOSEPH A. D'AGOSTINO, ESQ.

KUHARSKI, LEVITZ & GIOVINAZZO, ESQS.
Attorneys for Plaintiff
176 Hart Blvd.
Staten Island, N.Y., 10301
Telephone (718) 448-1600

Index No.

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT and JOHN and JANE DOE
1 Through 10, individually and in their official capacities
(the names John and Jane Doe being fictitious,
as the true names are presently unknown),
Defendants.

SUMMONS AND VERIFIED COMPLAINT

KUHARSKI, LEVITZ & GIOVINAZZO, ESQ.
Attorneys for Plaintiffs
176 HART BLVD.
STATEN ISLAND, New York 10301
718-448-1600

TO: ZACHARY CARTER, ESQ.
CORPORATION COUNSEL
OF THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

JS 44 (Rev. 1/2013)

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)

I. (a) PLAINTIFFS

KENNETH DALY

(b) County of Residence of First Listed Plaintiff Richmond

(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorneys (Firm Name, Address, and Telephone Number)

KUHARSKI, LEVITZ & GIOVINAZZO, ESQS.

176 HART BOULEVARD

STATEN ISLAND, NY 10301

DEFENDANTS

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and JOHN and JANE DOE 1 through 10, individually and in their official capacities (the names JOHN and JANE DOE being

County of Residence of First Listed Defendant

(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED.

Attorneys (If Known)

CORPORATION COUNSEL OF THE CITY OF NEW YORK

100 CHURCH STREET

NEW YORK, NY 10007

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff
- ☒ 3 Federal Question (U.S. Government Not a Party)
- ☐ 2 U.S. Government Defendant
- ☐ 4 Diversity (Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- | | PTF | DEF | | PTF | DEF |
|---|---------------------------------------|----------------------------|---|----------------------------|---------------------------------------|
| Citizen of This State | ☒ 1 | ☐ 1 | Incorporated or Principal Place of Business In This State | ☐ 4 | ☒ 4 |
| Citizen of Another State | ☐ 2 | ☐ 2 | Incorporated and Principal Place of Business In Another State | ☐ 5 | ☐ 5 |
| Citizen or Subject of a Foreign Country | ☐ 3 | ☐ 3 | Foreign Nation | ☐ 6 | ☐ 6 |

IV. NATURE OF SUIT (Place an "X" in One Box Only)

CONTRACT	TORTS	FORFEITURE/PENALTY	BANKRUPTCY	OTHER STATUTES	
☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	PERSONAL INJURY ☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☐ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury ☐ 362 Personal Injury - Medical Malpractice	PERSONAL INJURY ☐ 365 Personal Injury - Product Liability ☐ 367 Health Care/Pharmaceutical Personal Injury Product Liability ☐ 368 Asbestos Personal Injury Product Liability PERSONAL PROPERTY ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability	☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 690 Other LABOR ☐ 710 Fair Labor Standards Act ☐ 720 Labor/Management Relations ☐ 740 Railway Labor Act ☐ 751 Family and Medical Leave Act ☐ 790 Other Labor Litigation ☐ 791 Employee Retirement Income Security Act IMMIGRATION ☐ 462 Naturalization Application ☐ 465 Other Immigration Actions	☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157 PROPERTY RIGHTS ☐ 820 Copyrights ☐ 830 Patent ☐ 840 Trademark SOCIAL SECURITY ☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g)) FEDERAL TAX SUITS ☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609	☐ 375 False Claims Act ☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit ☐ 490 Cable/Sat TV ☐ 850 Securities/Commodities/Exchange ☐ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 893 Environmental Matters ☐ 895 Freedom of Information Act ☐ 896 Arbitration ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision ☐ 950 Constitutionality of State Statutes
REAL PROPERTY ☐ 210 Land Condemnation ☐ 220 Foreclosure ☐ 230 Rent Lease & Ejectment ☐ 240 Torts to Land ☐ 245 Tort Product Liability ☐ 290 All Other Real Property	CIVIL RIGHTS ☒ 440 Other Civil Rights ☐ 441 Voting ☐ 442 Employment ☐ 443 Housing/Accommodations ☐ 445 Amer. w/Disabilities - Employment ☐ 446 Amer. w/Disabilities - Other ☐ 448 Education	PRISONER PETITIONS Habeas Corpus: ☐ 463 Alien Detainee ☐ 510 Motions to Vacate Sentence ☐ 530 General ☐ 535 Death Penalty Other: ☐ 540 Mandamus & Other ☐ 550 Civil Rights ☐ 555 Prison Condition ☐ 560 Civil Detainee - Conditions of Confinement			

V. ORIGIN (Place an "X" in One Box Only)

- ☒ 1 Original Proceeding ☐ 2 Removed from State Court ☐ 3 Remanded from Appellate Court ☐ 4 Reinstated or Reopened ☐ 5 Transferred from Another District (specify) ☐ 6 Multidistrict Litigation

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):

42 U.S.C., SECTIONS 1983 AND 1988

Brief description of cause:

FALSE ARREST AND ASSAULT

VII. REQUESTED IN COMPLAINT:
☐ CHECK IF THIS IS A CLASS ACTION UNDER RULE 23, F.R.Cv.P.

DEMAND \$

2,000,000.00

CHECK YES only if demanded in complaint:

JURY DEMAND: ☒ Yes ☐ No**VIII. RELATED CASE(S) IF ANY**

(See instructions):

JUDGE

DOCKET NUMBER

DATE

10/12/2015

SIGNATURE OF ATTORNEY OF RECORD

FOR OFFICE USE ONLY

RECEIPT #

AMOUNT

APPLYING IFP

JUDGE

MAG. JUDGE

CERTIFICATION OF ARBITRATION ELIGIBILITY

Local Arbitration Rule 83.10 provides that with certain exceptions, actions seeking money damages only in an amount not in excess of \$150,000, exclusive of interest and costs, are eligible for compulsory arbitration. The amount of damages is presumed to be below the threshold amount unless a certification to the contrary is filed.

I, JOSEPH A. D'AGOSTINO, ESQ., counsel for PLAINTIFF, do hereby certify that the above captioned civil action is ineligible for compulsory arbitration for the following reason(s):

- ☒ monetary damages sought are in excess of \$150,000, exclusive of interest and costs,
- ☐ the complaint seeks injunctive relief,
- ☐ the matter is otherwise ineligible for the following reason

DISCLOSURE STATEMENT - FEDERAL RULES CIVIL PROCEDURE 7.1

Identify any parent corporation and any publicly held corporation that owns 10% or more of its stocks:

RELATED CASE STATEMENT (Section VIII on the Front of this Form)

Please list all cases that are arguably related pursuant to Division of Business Rule 50.3.1 in Section VIII on the front of this form. Rule 50.3.1 (a) provides that "A civil case is "related" to another civil case for purposes of this guideline when, because of the similarity of facts and legal issues or because the cases arise from the same transactions or events, a substantial saving of judicial resources is likely to result from assigning both cases to the same judge and magistrate judge." Rule 50.3.1 (b) provides that "A civil case shall not be deemed "related" to another civil case merely because the civil case: (A) involves identical legal issues, or (B) involves the same parties." Rule 50.3.1 (c) further provides that "Presumptively, and subject to the power of a judge to determine otherwise pursuant to paragraph (d), civil cases shall not be deemed to be "related" unless both cases are still pending before the court."

NY-E DIVISION OF BUSINESS RULE 50.1(d)(2)

- 1.) Is the civil action being filed in the Eastern District removed from a New York State Court located in Nassau or Suffolk County? _____
- 2.) If you answered "no" above:
- a) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in Nassau or Suffolk County? _____
- b) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in the Eastern District? _____

If your answer to question 2 (b) is "No," does the defendant (or a majority of the defendants, if there is more than one) reside in Nassau or Suffolk County, or, in an interpleader action, does the claimant (or a majority of the claimants, if there is more than one) reside in Nassau or Suffolk County? _____

(Note: A corporation shall be considered a resident of the County in which it has the most significant contacts).

BAR ADMISSION

I am currently admitted in the Eastern District of New York and currently a member in good standing of the bar of this court.

☒ Yes

☐ No

Are you currently the subject of any disciplinary action (s) in this or any other state or federal court?

☐ Yes

(If yes, please explain)

☒ No

I certify the accuracy of all information provided above.

Signature: Joseph A. D'Agostino

Signature of Clerk or Deputy Clerk